



DECISION

Complaint No. : POS/4411/2024/J-34

Name and address of the complainant : Ms. Fakhra Khatoon
R/o. C1-16/1, Ghazi Town, Phase-1, Malir, Karachi.

Name of the Agency Complained against : School Education & Literacy Department

Name & Designation of Investigating Officer :

Vetted by : Dr. Syed Sharaf Ali Shah, Advisor-J

Subject : **COMPLAINT AGAINST THE OFFICIALS CONCERNED FOR ALLEGED NON-PROCESSING THE COMPLAINANT'S APPLICATION FOR GRANT OF EX-PAKISTAN LEAVE.**

COMPLAINT

Mst. Fakhra Khatoon filed a complaint dated 24.09.2024 against the School Education & Literacy Department regarding the alleged unjust delay in the processing of her Ex-Pakistan Leave. She stated that despite requesting the concerned authority to issue a No Objection Certificate (NOC) for Ex-Pakistan Leave, no response was received. Consequently, she sought the intervention of this Institution.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), subject to submission of the mandatory Affidavit on Form "A", copy of CNIC, and condonation of delay.
3. The matter was taken up with the agency. In response, the Additional Director, School Education & Literacy Department, vide letter dated 25.10.2024, stated that the complaint regarding non-processing of Ex-Pakistan Leave of Mst. Fakhra Khatoon, JEST (Personal No. 11005308), posted at GGSS Ammar Yasir, Malir, Karachi, had been forwarded to the Secretariat for further action. However, in the meantime, the complainant approached the Provincial Ombudsman (Mohtasib) Sindh.
4. He further stated that it came to notice that the complainant had already proceeded to Japan without obtaining prior permission or sanction for Ex-Pakistan Leave and had drawn salary for the relevant period. This report was forwarded to the complainant for rejoinder at her recorded address. Meanwhile, her father submitted a letter dated 31.07.2025 alleging that the agency had misled the Ombudsman's Office and had not specified the date on which the case was forwarded to the Secretary, Education Department.

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5. During correspondence and multiple hearings, the agency submitted a further report dated 18.09.2025 stating that the complainant had applied for Ex-Pakistan Leave for 19 months for studies on scholarship. However, she had not completed her Probationary period and was therefore ineligible for the said leave. The complainant was appointed as Junior School Teacher (BPS-14) on 27.09.2022. Her service tenure from the date of appointment until the commencement of absence on 15.09.2024 totaled approximately two (02) years. Furthermore, a Show Cause Notice was issued to her regarding her absence from duty.

6. As per Rule 19 (Extraordinary Leave) of the Sindh Civil Servants Leave Rules, 1986, extraordinary leave may be granted subject to the length of service and at the discretion of the competent authority. The relevant provision states:

“Extraordinary leave may be granted on any ground up to a maximum of five years at a time, provided the civil servant has been in continuous service for a period of not less than ten years. In case a civil servant has not completed ten years of continuous service, extraordinary leave for a maximum period of two years may be granted at the discretion of the competent authority.”

7. The complainant proceeded abroad without obtaining sanction from the competent authority, i.e., the Secretary, Government of Sindh, School Education & Literacy Department, for Ex-Pakistan Leave or any other admissible leave.

Relevant terms and conditions of the Appointment Order are reproduced below:

- i. “His / Her appointment will be on probation for a period of two (02) years, calculated from the date of joining.”
- ii. “He / She shall not directly or indirectly request transfer from his/her place of posting before completion of three (03) years. Any such request shall be treated as misconduct and may lead to dismissal from service.”
- iii. “His / Her services shall be governed by all applicable service rules, policies, and instructions issued by the Government of Sindh.”
- iv. “The appointment order is subject to withdrawal, amendment, or correction by the competent authority without notice and shall not be challenged before any court of law”.

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8. The complainant, being a signatory to the above terms and conditions, is legally bound by the provisions of her Appointment Order and cannot deviate there from.

9. The complainant has also misconceived and misinterpreted Fundamental Rule 84, notified on 24.01.1961 (Gazette of Pakistan), which does not support her claim.

FINDINGS

10. After examining the complaint, the agency's replies, the record produced, and the arguments advanced during the proceedings, the following findings emerge:-

- i) The complainant, Mst. Fakhra Khatoon, was appointed as Junior School Teacher (BPS-14) on 27.09.2022 and was placed on a two-year probationary period, as clearly stipulated in her Appointment Order.
- ii) She applied for Ex-Pakistan Leave for 19 months for study purposes without completing her probationary period and without rendering the minimum qualifying service required under Rule 19 of the Sindh Civil Servants Leave Rules, 1986.

The relevant provision states:

“Extraordinary leave may be granted on any ground up to a maximum of five years at a time, provided the civil servant has been in continuous service for a period of not less than ten years. In case a civil servant has not completed ten years of continuous service, extraordinary leave for a maximum period of two years may be granted at the discretion of the competent authority.”

- iii) The record reflects that the complainant proceeded abroad on 15.09.2024 without obtaining prior approval or sanction from the competent authority, i.e., the Secretary, School Education & Literacy Department, Government of Sindh.
- iv) At the time of proceeding abroad, she had completed approximately 1 year, 11 months, and 21 days of service, leaving 10 days of probation uncompleted, thereby rendering her ineligible for Ex-Pakistan Leave or Extraordinary Leave.
- v) Proceeding abroad without sanctioned leave constitutes unauthorized absence and amounts to misconduct under Rule 2(4) of the Sindh Civil Servants (E&D) Rules, 1973, read with the Sindh Government Servants (Conduct) Rules, 1966.
- vi) The terms and conditions of the Appointment Order, duly accepted by the complainant, are binding upon her. Any deviation there from cannot be justified.

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DECISION

11. In view of the above findings, the complainant was not entitled to Ex-Pakistan Leave, having neither completed her probationary period nor obtained prior sanction from the competent authority. Her act of proceeding abroad amounts to unauthorized absence and misconduct.

12. In light of the foregoing, the complaint merits no further consideration and is hereby rejected. The case shall be consigned to record accordingly.

“Given under my hand and seal of office”



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh
Karachi, dated 26th March, 2026

